

TAB 15



Board of Education Report

File #: Rep-194-22/23, **Version:** 1

**Approval of the Proposed Material Revision for New Los Angeles Charter [PUBLIC HEARING]
March 27, 2023
Charter Schools Division**

Action Proposed:

Approve the material revision of the charter for New Los Angeles Charter (“Charter School”), to add admissions preferences. Per related Board Report 193, New Los Angeles Charter seeks a one-time admission preference in Spring 2023 for grade 6 and grade 7 students from The City; an ongoing admission preference for matriculating grade 5 students from New Los Angeles Charter Elementary; and an ongoing admission preference for matriculating grade 5 students from City Language Immersion Charter. The recommendation for approval is based on the information set forth in the attached Staff Assessment and Recommendation Report.

Background:

New Los Angeles Charter is a 6-8 school currently serving 329 students on a private facility in the Mid-City area at 1919 S. Burnside Avenue, Los Angeles, CA 90016 in Board District 1 and Region West. New Los Angeles Charter was approved by the LAUSD Board of Education on April 22, 2008. On October 3, 2017, the charter school was renewed for another five-year term to serve 360 students in grades 6-8.

On December 21, 2022, the Charter Schools Division commenced processing of New Los Angeles Charter’s complete material revision. New Los Angeles Charter seeks to revise its current charter, which expires June 30, 2023. Effective July 1, 2021, Assembly Bill 130 [codified, in part, as Education Code section 47607.4] extends the terms of all charter schools whose terms expire on or between January 1, 2022 and June 30, 2025, inclusive, by two years. Thus, by operation of law, the charter term for New Los Angeles Charter expires June 30, 2025.

Based on a comprehensive review of the material revision application and supporting documentation, staff has determined that the charter school has met the standards and criteria set forth in Education Code section 47605 and therefore recommends approval of the material revision of the charter.

Expected Outcomes:

Charter School is expected to operate its school in a manner consistent with Board action, policies and requirements, local, state, and federal law including ordinances, statutes, and regulations as well as with the terms and conditions set forth in Charter School’s petition. The measurable pupil outcomes and method by which pupil progress toward outcomes will be measured are set forth in the charter petition.

Board Options and Consequences:

“Yes” - If the Board adopts the recommendation of approval of the material revision of the charter, Charter School would continue to operate as a charter school, as amended, for the remainder of the charter term.

However, if the Board does not adopt the recommendation of approval of the material revision of City Language Immersion Charter (Board Report 193), and instead takes specific action to deny City Language

Immersion Charter's proposed material revision, Charter School's proposed admission preferences as described in the Action Proposed above and presented in Charter School's material revision application, shall become void and have no force and effect.

"No" - If the Board does not adopt the recommendation of approval of the material revision of the charter, and instead takes specific action to deny the proposed material revision of the charter, Charter School would continue to operate under the terms of its current charter consistently with the Board's action and direction.

Policy Implications:

There are no policy implications at this time.

Budget Impact:

State income and various other income sources to the District are reduced when current District students enroll at a charter school, and comparable or offsetting expenditure reduction may not occur in such cases. Under Education Code section 47604(d), a school district that grants a charter to a charter school to be operated by, or as, a nonprofit public benefit corporation is not held liable for the charter school's debts or obligations as long as the school district complies with all oversight responsibilities required by law. The District will continue to have monitoring and oversight responsibility for charter school finances, as specified in the Charter Schools Act. Any significant modifications to the charter school's petition or operations that raise financial implications would require a material revision prior to implementation. Petition approval is also contingent upon adequate liability insurance coverage.

Charter School has selected to join the LAUSD special education local planning area (SELPA) Option 3. The Charter School's fair share contribution to special education will be 10% of the charter schools' AB 602 (rate includes Base, Cost-of-Living Adjustment (COLA), and Growth/Decline reduced by the amount withheld for Program Specialist/Regionalized Services) and Federal IDEA revenues. This amount will be paid from the Charter School's Local Control Funding Formula ("LCFF") funds or other unrestricted revenue sources and will be allocated to support the existing District-wide administration of special education supports and services. The amount withheld by the District from the Program Specialist/Regionalized Services in fiscal year will continue to be withheld and adjusted annually for COLA. An additional 10% of special education revenues will be retained by the District and allocated as directed by the Advisory Board and members of the LAUSD SELPA Option 3, with the leadership of the Charter-operated Program special education director. These funds will be used to support the personnel for the members of the LAUSD SELPA Option 3; build management and operating procedures to create an infrastructure to support schools in meeting the needs of students with mild to severe disabilities; and, to create and implement new programs that serve students in charter schools. If Charter School does not spend their allocation of special education funds during a fiscal year of the charter petition period, the allocation of special education funds to Charter School for the next fiscal year will be reduced in an amount equal to the unspent special education funds of the previous fiscal year.

Student Impact:

As stated in the *LAUSD Policy and Procedures for Charter Schools*, "[W]hen the LAUSD Board authorizes and oversees a charter school, it establishes a relationship to advance its vision and mission and to accelerate gains in academic achievement and accountability for *all* of its students and public schools," (*Policy*, p.3). Based on a comprehensive review and assessment of Charter School's request for material revision of the charter and its record of performance, staff has determined that Charter School has met the requirements for approval of the material revision.

File #: Rep-194-22/23, **Version:** 1

Equity Impact:

Not applicable

Issues and Analysis:

If all applicable pending issues, including but not limited to special education requirements, special education local planning area (SELPA) requirements, governance, fiscal and facilities matters, are not resolved at the time of the Board meeting, the item may be pulled from the agenda.

Attachments:

Attachment A - Staff Assessment and Recommendation Report

Attachment B - DFS Data

Attachment C - Desegregation Impact Statement

Attachment D - Material Revision

Attachment E - i-Ready Final Diagnostic Growth End of Year Data for 2021-2022

Informatives:

Not applicable

Submitted:

02/22/23

RESPECTFULLY SUBMITTED,

ALBERTO M. CARVALHO
Superintendent of Schools

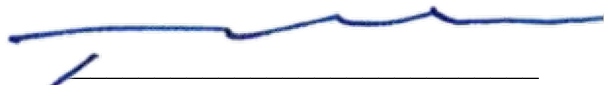
APPROVED & PRESENTED BY:

JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:

DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

REVIEWED BY:

TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement.

ATTACHMENT A

STAFF ASSESSMENT AND RECOMMENDATION REPORT

REQUEST FOR MATERIAL REVISION OF CHARTER

Board of Education Report 194-22/23

March 21, 2023

School Name:	New Los Angeles Charter		
Type of Charter School:	Start-Up Independent Charter School		
Charter Operator	New Los Angeles Charter School		
Location Code:	8015		
Type of Site(s):	Private		
Site Address(es):	1919 S. Burnside Avenue, Los Angeles, CA 90016		
Board District(s):	1	Region(s):	West
Grade Levels Served:	6-8	Current Enrollment:	329
Grade Levels Authorized in Current Charter:	6-8	Approved Enrollment in Current Charter:	360
CONSIDERATION:	Material Revision to add admissions preferences		
CDE PERFORMANCE LEVEL: (PER CDE'S 2020 CLASSIFICATION)	Middle Performing		
STAFF RECOMMENDATION:	Approval		
SUMMARY OF STAFF FINDINGS:	Based on a comprehensive review of the request for material revision of the charter and the school's record of performance, staff has determined that the charter school has met the standards and criteria for approval. ♦ The charter school has presented a sound educational program for its targeted student population. ♦ The petition, as revised through the petition review and revisions process, contains reasonably comprehensive descriptions of all required elements, including the Federal, State, and District Required Language. ♦ Petitioners are demonstrably likely to successfully implement the educational program set forth in the petition. ♦ The petition contains required affirmations, assurances, and declarations. ♦ The petition contains a declaration of whether or not the charter school shall be deemed the exclusive public employer of the employees of the charter school for purposes of Chapter 10.7 of Division 4 of Title 1 of the Government Code.		

STAFF ASSESSMENT

I. ACTION PROPOSED

Staff recommends approval of the proposed material revision of the charter for New Los Angeles Charter (“Charter School”), a 6-8 school located in Board District 1 and Region West, to add admissions preferences (Please see the related Board Report 193-22/23 concerning the City Charter Schools). New Los Angeles Charter seeks a one-time admission preference in Spring 2023 for grade 6 and grade 7 students from The City; an ongoing admission preference for matriculating grade 5 students from New Los Angeles Charter Elementary; and an ongoing admission preference for matriculating grade 5 students from City Language Immersion Charter.

The New Los Angeles Charter School Board of Directors, the nonprofit organization that holds the charter, is proposing the one-time admissions preference due to the proposed transfer of governance and operations of the City Language Immersion Charter to New Los Angeles Charter School [and the related closure of The City, a City Charter Schools middle school, effective June 30, 2023, per its Board’s decision on December 6, 2022]. New Los Angeles Charter is also requesting ongoing admissions preferences to provide students the opportunity to continue in the educational program.

II. CRITERIA FOR MATERIAL REVISIONS

Material Revisions are governed by the same standards and criteria that apply to new petitions (See Ed. Code, §§47605 and 47607), and shall include, but not be limited to, a reasonably comprehensive description of any new requirement for charter schools enacted into law after the charter was originally granted or last renewed. (Ed. Code, §47607(a)(3) and (b).) Staff must determine whether the charter, as amended, would be reasonably comprehensive, educationally sound, and demonstrably likely to be successfully implemented. If the Material Revision contains a request to expand to one or more additional sites, or to add grade levels, staff must also determine whether the charter school is demonstrably likely to serve the interests of the entire community in which the school is proposing to locate. (Ed. Code, § 47605(c)(7); Ed. Code, § 47607(a)(4)), and whether LAUSD is positioned to absorb the fiscal impact of the charter school expansion. (Ed. Code, § 47605(c)(8); Ed. Code § 47607(a)(4).)

III. GENERAL SCHOOL INFORMATION

A. School History

	New Los Angeles Charter
Initial Authorization:	On April 22, 2008, New Los Angeles Charter was authorized by the LAUSD Board of Education to serve 240 students in grades 6-8.
Most Recent Renewal:	The charter was renewed on October 3, 2017 for a five-year term (July 1, 2018- June 30, 2023) to serve up to 360 students in grades 6-8. Effective July 1, 2021, Assembly Bill 130 [codified, in part, as Education Code section 47607.4] extends the terms of all charter schools whose terms expire on or between January 1, 2022, and June 30, 2025, inclusive, by two years. Thus, by operation of law,

	New Los Angeles Charter
	the charter term for New Los Angeles Charter expires June 30, 2025.
Approved Material Revisions of Current Charter:	Not Applicable
Board Benchmarks in Current Charter Term:	On October 3, 2017, as part of the school’s most recent renewal, the LAUSD Board of Education issued the following benchmarks to New Los Angeles Charter: 1. The charter school will demonstrate an ongoing increase in reclassification of its English Learners to meet or exceed the District reclassification rate over the course of the five-year term of their renewal, which will be monitored by the CSD through oversight. 2. The charter school shall provide a plan to the Charter Schools Division of the school’s system for accurate and timely reporting of reclassification in CALPADS in alignment with CALPADS submission windows each year of the charter term and no later than December 1, 2017 and ensure successful execution during the term of its charter. The plan must address how this system will be accessible without interruption in the case of staff changes. New Los Angeles Charter is in year five of its charter term and available data shows that the school has met the reclassification benchmark in two of four years and has met the CALPADS reporting benchmark on an annual basis for the charter term, thus far. Please see the “Staff Review and Assessment” section below.
Material Revision Application:	The processing of New Los Angeles Charter’s complete material revision application commenced on December 21, 2022. Pursuant to the <i>LAUSD Policy and Procedures for Charter Schools</i> , the 120-day timeline (for presenting the material revision once processing commences) runs through April 20, 2023.

B. Educational Program

	New Los Angeles Charter
Key Features of Educational Program:	New Los Angeles Charter offers a 6-8 educational program which includes the following features: ♦ Students are provided with opportunities to develop persistence skills through the school's implementation of Positive Behavioral Interventions Support (PBIS) within the Advisory program. ♦ The reading intervention course uses i-Ready assessments and feedback from teachers to accelerate student progress towards grade level mastery in reading comprehension.
Master Plan for English Learners and Standard English Learners:	New Los Angeles Charter implements the District's Master Plan for English Learners and Standard English Learners.
Special Education SELPA:	New Los Angeles Charter participates in LAUSD Special Education Local Plan Area (SELPA) Option 3.

C. Student Enrollment and Population

New Los Angeles Charter 2021-2022 Enrollment by Ethnicity and Student Group																	
Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
320	91.3%	0.0%	0.6%	1.3%	7.2%	25.9%	0.0%	0.3%	0.3%	86.6%	0.0%	0.3%	2.2%	92.2%	18.8%	1.6%	0.3%

Data Sources: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

D. Charter School Operator

New Los Angeles Charter is operated by New Los Angeles Charter School, a California non-profit public benefit corporation that operates one other LAUSD-authorized charter school.

IV. STAFF REVIEW AND ASSESSMENT

Based on a comprehensive review of the material revision application, staff has determined that the charter school has met the standards and criteria for approval. Staff analysis includes the following:

- A. Does the petition, as revised, include a sound educational program, a reasonably comprehensive description of the 15 elements required for petitions, an affirmation of each of the conditions described in Education Code section 47605(e), and are petitioners likely to successfully implement the program set forth in the petition?**

Yes, the petition, as amended, presents a sound educational program; a reasonably comprehensive petition with the requisite affirmations and the Federal, State, and District Required Language; and petitioners are likely to successfully implement the educational program for its targeted student population. The petition, as proposed through its revisions, is consistent with applicable legal, District policy and other requirements, and sufficiently addresses, including but not limited to, the identification of appropriate performance targets and description of an instructional program aligned to state performance standards and the salient needs of the target student population.

In considering the organization's request for the ongoing admissions preferences, Staff analyzed New Los Angeles Charter's record of enrollment, student demographics, and issues related to its admissions practices to assess the need for the preferences, as well as factors related to access and equity.

The charter school's record of performance during the term of the charter is addressed below under the following specific factors:

1. *Student Achievement and Educational Performance*

a. Summary

New Los Angeles Charter has been identified by the state as a Middle performing charter school. Please see discussion of the charter school's record of academic performance below. Updated CDE Performance Levels from the state are not available at this time.

b. Measurements of Academic Performance on the California School Dashboard

Due to the COVID-19 pandemic, state law allows the 2022 Dashboard to only display the most current year of data (also known as Status). Performance levels will be reported based on the 2021-2022 school year data using one of five Status levels (ranging from Very High, High, Medium, Low, and Very Low) for state measures. Please note that the Status levels associated with the Chronic Absenteeism and Suspension Rate Indicators are reversed (ranging from Very Low, Low, Medium, High, and Very High).

New Los Angeles Charter							
Year	ELA	Math	EL Progress Indicator	College/Career Indicator	Chronic Absenteeism	Graduation Rate	Suspension Rate
2022	Low	Low	Medium	N/A	Very High	N/A	Low

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>

Please see attached *New Los Angeles Charter* Data Set.

c. English Language Arts Academic Indicator

Distance from Standard Schoolwide and Numerically Significant Student Groups:

New Los Angeles Charter – ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator						
Student Group	Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison
All Students	310	-32.6	Low	-12.2	Low	Lower
English Learner	106	-81.6	Very Low	-61.2	Low	Lower
Latino	272	-34.9	Low	-38.6	Low	Higher
Socioeconomically Disadvantaged	286	-34.6	Low	-41.4	Low	Higher
Students with Disabilities	58	-103.6	Very Low	-97.3	Very Low	Lower

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>
 Due to requirements under AB 130, the CDE can only display the most current year of data (or Status) on the 2022 Dashboard. Therefore, every Local Educational Agency (LEA), school, and student group will receive one of five Status levels on the 2022 Dashboard based on 2021–2022 school year, ranging from Very High, High, Medium, Low, and Very Low. Change levels and performance colors are not reported.

As seen in the above table, in 2022, in English Language Arts (ELA), New Los Angeles Charter’s Distance from Standard (DFS) schoolwide was lower than the state’s DFS. The charter school’s Latino and Socioeconomically Disadvantaged student groups were higher than the state’s DFS for those student groups, while the English Learner and Students with Disabilities student groups were lower than the state’s DFS for those student groups.

In order to improve academic achievement in ELA, school leadership shared the school is continuing to use a reading intervention teacher to provide small group reading support for students and is continuing to implement the i-Ready Reading assessments to support and differentiate student learning within California state content standards. For 2022-2023, the school has developed a master schedule to provide an additional instructional block for students that are identified for reading support. School leadership also shared the school has invested in new curriculum and associated teacher professional development to assist in reading and writing instruction.

New Los Angeles Charter 2021-2022 English Language Arts Indicator Participation Rate by Student Group				
All Students	English Learner	Latino	Socioeconomically Disadvantaged	Students with Disabilities
99%	100%	99%	99%	98%

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>
 Participation Rate Report above displays the percent of students tested by content area for the numerically significant student groups. The Every Student Succeeds Act (ESSA) requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. Beginning with the 2022 Dashboard, California will assign the [Lowest Obtainable Scale Score \(LOSS\)](#) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

In 2022, in ELA, the charter school met the participation rates (95%) schoolwide and for its numerically significant student groups (English Learner, Latino, Socioeconomically Disadvantaged, and Students with Disabilities).

Internal Assessment Data

The charter school provided data from an i-Ready Final Diagnostic Growth Report for 2021-2022 (Fall to Spring administration).

Every Student Succeeds Act (ESSA) requires that all schools and student groups meet the 95 percent participation requirement for English language/arts/literacy (ELA) and Math. In reviewing the i-Ready data provided for Reading, New Los Angeles Charter's Fall 2021 to Spring 2022 i-Ready Diagnostic assessment shows that grades 6-8 met the participation rate.

For the numerically significant student groups for which data were provided, in grades 6-8 in Reading, all three numerically significant student groups (Latino, English Learner, and Students with Disabilities) met the participation rate.

New Los Angeles Charter's Fall 2021 to Spring 2022 i-Ready Diagnostic assessment for Reading shows that the percent of students that met the Annual Typical Growth was 63%. Therefore, based on i-Ready's Annual Typical Growth,¹ New Los Angeles Charter had at least 50% of reported students achieving 100% of Annual Typical Growth.

As seen in the table below, New Los Angeles Charter provided data for three numerically significant student groups (English Learners, Latino, and Students with Disabilities) and all three had 50% or more of its students achieving 100% of their 2021-2022 Annual Typical Growth.

Grades	Reading: Percent of Students that Met the Annual Typical Growth	Students Assessed/Total	Participation Rate
6-8	63%	318/324	98%

Data Source: i-Ready reports provided by New Los Angeles Charter

Numerically Significant Student Groups	Reading: Percent of Students that Met the Annual Typical Growth	Students Assessed/Total	Participation Rate
English Learners	58%	86/87	99%
Latino	63%	272/276	99%
Students with Disabilities	60%	53/56	95%

Data Source: i-Ready reports provided by New Los Angeles Charter

d. Math Academic Indicator

Distance from Standard Schoolwide and Numerically Significant Student Groups:

¹ i-Ready's Typical Growth is the average annual growth (from Fall to Spring) for an average student taking the i-Ready Diagnostic at their grade and baseline placement level. Typical Growth values were derived using the median, or 50th percentile, of student growth at each grade and placement level on the i-Ready Diagnostic. Based on published i-Ready information, a school that has more than 50% of its students achieving 100% of their Annual Typical Growth targets is demonstrating growth above the norm of the 50th percentile growth measure target (with the ultimate goal for a school to meet 100% of students meeting their Annual Typical Growth targets). Thus, staff assessed the extent to which the charter school's results show at least 50% of all students, as well as numerically significant student groups, achieving 100% of Annual Typical Growth.

New Los Angeles Charter – Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator						
Student Group	Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison
All Students	311	-93.1	Low	-51.7	Low	Lower
English Learners	106	-142.4	Very Low	-92.0	Low	Lower
Latino	273	-95.2	Very Low	-83.4	Low	Lower
Socioeconomically Disadvantaged	287	-93.4	Low	-84.0	Low	Lower
Students with Disabilities	58	-164.1	Very Low	-130.8	Very Low	Lower

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>

Due to requirements under AB 130, the CDE can only display the most current year of data (or Status) on the 2022 Dashboard. Therefore, every Local Educational Agency (LEA), school, and student group will receive one of five Status levels on the 2022 Dashboard based on 2021–2022 school year, ranging from Very High, High, Medium, Low, and Very Low. Change levels and performance colors are not reported.

As seen in the above table, in 2022, in Math, New Los Angeles Charter’s DFS schoolwide was lower than the state’s DFS and for all numerically significant student groups.

In order to improve academic achievement in Math, school leadership shared the school has hired a Math intervention teacher to collaborate with and plan instruction with teaching staff. In addition, school leadership stated Math teachers completed training last year with the UCLA Math Project, which included the use of coaching teachers to improve Math instruction. For 2022-2023, the school has developed a master schedule to provide an additional instructional block for students that are identified for Math support. School leadership also shared the school will continue to use i-Ready Math assessments to assess student mastery of content standards and allow differentiated student learning within California state content standards.

New Los Angeles Charter 2021-2022 Mathematics Indicator Participation Rate by Student Group				
All Students	English Learner	Latino	Socioeconomically Disadvantaged	Students with Disabilities
100%	100%	100%	100%	98%

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>

Participation Rate Report above displays the percent of students tested by content area for the numerically significant student groups. The Every Student Succeeds Act (ESSA) requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. Beginning with the 2022 Dashboard, California will assign the [Lowest Obtainable Scale Score \(LOSS\)](#) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

In 2022, in Math, the charter school met the participation rates (95%) schoolwide and for its numerically significant student groups (English Learner, Latino, Socioeconomically Disadvantaged, and Students with Disabilities).

Internal Assessment Data

The charter school provided data from an i-Ready Final Diagnostic Growth Report for 2021-2022 (Fall to Spring administration).

Every Student Succeeds Act (ESSA) requires that all schools and student groups meet the 95 percent participation requirement for English language/arts/literacy (ELA) and Math. In reviewing the i-Ready data provided for Math, New Los Angeles Charter's Fall 2021 to Spring 2022 i-Ready Diagnostic assessment shows that grades 6-8 met the participation rate.

For the numerically significant student groups for which data were provided, in grades 6-8 in Math, all three numerically significant student groups (Latino, English Learner, and Students with Disabilities) met the participation rate.

New Los Angeles Charter's Fall 2021 to Spring 2022 i-Ready Diagnostic assessment shows that the percent of students that met the Annual Typical Growth was 57%. Therefore, based on i-Ready's Annual Typical Growth, New Los Angeles Charter had at least 50% of reported students achieving 100% of Annual Typical Growth.

As seen in the table below, New Los Angeles Charter provided data for three numerically significant student groups (English Learners, Latino, and Students with Disabilities) and all three had 50% or more of its students achieving 100% of their 2021-2022 Annual Typical Growth.

Grades	Math: Percent of Students that Met the Annual Typical Growth	Students Assessed/Total	Participation Rate
6-8	57%	318/324	98%

Data Source: i-Ready reports provided by New Los Angeles Charter

Numerically Significant Student Groups	Math: Percent of Students that Met the Annual Typical Growth	Students Assessed/Total	Participation Rate
English Learners	52%	86/87	99%
Latino	57%	272/276	99%
Students with Disabilities	55%	55/56	98%

Data Source: i-Ready reports provided by New Los Angeles Charter

e. English Learner Progress Academic Indicator

Percent of English Learners Making Progress Towards English Proficiency:

New Los Angeles Charter 2021-2022 English Learner Progress Indicator – CA School Dashboard Indicator						
Student Group	Number of English Learner Students	School 2022 Percentage of English Learners making progress towards English proficiency	School 2022 Status Level	State 2022 Percentage of English Learners making progress towards English proficiency	State 2022 Status Level	School to State ELPI Comparison
English Learners	79	50.6%	Medium	50.3%	Medium	Higher

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ds/sd/sd/>

As seen in the table above, the 2022 California School Dashboard indicates 50.6% of New Los Angeles Charter's English Learner students are making progress towards English

proficiency, which is higher than the state at 50.3%. The Performance Level for the school is Medium, which is the same as the state.

ELPAC Participation Rate 2021-2022			
School	Number of EL Students Enrolled	Number of EL Students Tested	Percent of EL Students Tested
New Los Angeles Charter	82	81	98.8%

Data Sources: DataQuest, Student and Downloadable Data File <https://www.cde.ca.gov/ds/sd/sd/>

Schools that did not test at least 95 percent of their English learner population on the English Language Proficiency Assessments for California (ELPAC) are assigned a “Low” Status, unless they have a “Very Low” Status.

f. College/Career Academic Indicator

The College/Career Academic Indicator was not reported in the 2022 Dashboard.

g. Suspension Rate Indicator

Percentage of Students Suspended At Least Once Schoolwide and Numerically Significant Student Groups:

New Los Angeles Charter - Suspension Rate Indicator - CA School Dashboard Indicator						
Student Group	Number of Students	School 2022 Percentage of Students suspended at least once	School 2022 Status Level	State 2022 Percentage of Students suspended at least once	State 2022 Status Level	School to State Suspension Rate Percentage Comparison
All Students	331	1.8%	Low	3.1%	Medium	Lower
English Learners	87	3.4%	Medium	3.2%	Medium	Higher
Latino	290	1.7%	Low	3.3%	Medium	Lower
Socioeconomically Disadvantaged	305	2.0%	Low	4.0%	Medium	Lower
Students with Disabilities	61	3.3%	Medium	5.4%	High	Lower

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ta/ac/cm/>

As indicated in the table above, in 2022, the charter school’s percentage of students suspended at least once was lower than the state schoolwide and for the numerically significant student groups, except for the English Learner student group, which was higher.

h. Graduation Rate Indicator [HS Only]

Percentage of Graduated Students Schoolwide and Numerically Significant Subgroups:
Not Applicable

i. Chronic Absenteeism Indicator

Percentage Schoolwide and Numerically Significant Student Groups:

New Los Angeles Charter – Chronic Absenteeism Indicator – CA School Dashboard Indicator						
Student Group	Number of students enrolled who meet criteria	School 2022 Chronic Absenteeism Percentage	School 2022 Status Level	State 2022 Chronic Absenteeism Percentage	State 2022 Status Level	School to State Chronic Absenteeism Percentage Comparison
All Students	326	42.3%	Very High	30.0%	Very High	Higher
English Learners	86	40.7%	Very High	33.6%	Very High	Higher
Latino	285	40.0%	Very High	35.8%	Very High	Higher
Socioeconomically Disadvantaged	301	41.9%	Very High	37.4%	Very High	Higher
Students with Disabilities	61	54.1%	Very High	39.6%	Very High	Higher

Data Sources: California School Dashboard Research data files 2022 <https://www.cde.ca.gov/ta/ac/cm/>

As seen in the table above, in 2022, the charter school’s Chronic Absenteeism percentage was higher than the state schoolwide and for all numerically significant student groups.

The school attributes the majority of its Chronic Absenteeism rates due to COVID-19 and additional illnesses. However, in order to reduce Chronic Absenteeism, school leadership shared the charter school has designated the school’s Assistant Principal to communicate with families of students that are at-risk of being chronically absent, as well as provide parent education workshops about school attendance and academic success. The importance of student attendance is further communicated, according to school leadership, in parent engagement meetings such as Parent Advisory Committee meetings. Also, the school continues to use the Student Attendance Review Team (SART) protocols to improve student attendance and reduce chronic absenteeism.

j. English Learner Performance
Reclassification Rates:

Year	Students Redesignated FEP	New Los Angeles Charter	State	School to State RFEP Comparison
2019-2020	2018-19 EL #	46	1,195,988	Lower
	2019-20 Reclass #	3	164,653	
	2019-20 Reclass Rate	6.5%	13.8%	
2020-2021	2019-20 EL #	53	1,148,024	Lower
	2020-21 Reclass #	0	79,667	
	2020-21 Reclass Rate	0.0%	6.9%	

Data Sources: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesreclass.asp>

In 2019-2020, New Los Angeles Charter’s reclassification rate was 6.5%, which was lower than the state’s reclassification rate of 13.8%. In 2020-2021, New Los Angeles Charter’s reclassification rate of 0.0% was lower than the state’s rate of 6.9%.

As of the writing of this report, the 2021-2022 reclassification rate data has not yet been published by the state.

In order to improve the reclassification of English Learner (EL) students to Fluent English Proficient (FEP) status, school leadership shared the school hired an EL Specialist to teach multiple levels of designated English Language Development (ELD). School leadership

also shared the school is working with a professional development partner, Ensemble Learning, to implement a scaffolded writing process targeting the academic growth of EL students as well as daily structured talk routines in all subject areas to develop speaking and listening skills of EL students.

New Los Angeles Charter adheres to the District’s reclassification criteria set forth in the *2018 Master Plan for English Learners and Standard English Learners*.

Long-term English Learners and “At-Risk” Rates:

English Learners	2020-21				2021-22			
	New Los Angeles Charter		State		New Los Angeles Charter		State	
	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent
LTEL 6+ Years	63	29.4%	361,482	17.1%	75	38.3%	379,290	18.1%
At-Risk 4-5 Years	8	3.7%	214,740	10.1%	4	2.0%	211,055	10.1%

Data Sources: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

In 2020-2021, New Los Angeles Charter’s percentage of Long-term English Learners (LTELs) was 29.4%, compared to the state’s rate of 17.1%. In 2021-2022, the charter school’s percentage was 38.3%, compared to the state’s 18.1%. In 2020-2021, New Los Angeles Charter’s percentage of “At-Risk” was 3.7%, compared to the state’s 10.1%. In 2021-2022, the charter school had 2.0% “At-Risk” compared to the state’s 10.1%.

2. Annual Oversight Results

a. Student Achievement and Educational Performance

New Los Angeles Charter has achieved the ratings of *Unsatisfactory* and *No Rating* in the category of Student Achievement and Educational Performance on its annual oversight evaluation reports for the last two years.

The rating of “1” (*Unsatisfactory*) in the 2020-2021 Annual Performance-Based Oversight Visit Report was due to the charter school’s 2019 Dashboard information which identified the Indicators of schoolwide ELA, schoolwide Math, schoolwide Suspension Rate, and schoolwide Chronic Absenteeism, as having performance colors of Orange. In addition, in 2019, none of the charter school’s numerically significant student groups had “Status/DFS” scores above the state in ELA and Math.

Due to the COVID-19 pandemic, state law suspended the reporting of state indicators on the 2021 Dashboard. Accordingly, a “No Rating” was issued in the Student Achievement and Educational Performance category for the 2021-2022 Annual Performance-Based Oversight Report.

	2020-2021	2021-2022
Annual Oversight Evaluation Report Rating in Category of Student Achievement and Educational Performance	1 Unsatisfactory	No Rating

*Note: The annual oversight rating represents the Charter Schools Division staff evaluation of the school’s performance as outlined in the Annual Performance-Based Oversight Visit Report on or about the date of the annual oversight visit.

b. Governance

New Los Angeles Charter has earned the rating of *Accomplished* in the category of Governance on its annual oversight evaluation reports over the past two years and has no unresolved governance issues pending.

	2020-2021	2021-2022
Annual Oversight Evaluation Report Rating in Category of Governance	4 Accomplished	4 Accomplished

*Note: The annual oversight rating represents the Charter Schools Division staff evaluation of the school's performance as outlined in the Annual Performance-Based Oversight Visit Report on or about the date of the annual oversight visit.

c. Organizational Management, Programs, and Operations

New Los Angeles Charter has earned the rating of *Proficient* in the category of Organizational Management, Programs, and Operations on its annual oversight evaluation reports for the last two years and has no unresolved operations issues pending.

	2020-2021	2021-2022
Annual Oversight Evaluation Report Rating in Category of Organizational Management, Programs, and Operations	3 Proficient	3 Proficient

*Note: The annual oversight rating represents the Charter Schools Division staff evaluation of the school's performance as outlined in the Annual Performance-Based Oversight Visit Report on or about the date of the annual oversight visit.

i. Access and Equity

New Los Angeles Charter 2021-2022 Enrollment by Ethnicity and Student Group																		
School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio- economically Disadvantaged	Students with Disabilities	Two or More Races	White
New Los Angeles Charter	320	91.3%	0.0%	0.6%	1.3%	7.2%	25.9%	0.0%	0.3%	0.3%	86.6%	0.0%	0.3%	2.2%	92.2%	18.8%	1.6%	0.3%
Statewide	5,892,240	57.8%	N/A	0.5%	9.5%	5.1%	19.1%	2.3%	0.5%	2.9%	55.9%	0.7%	0.4%	1.0%	59.6%	12.7%	4.3%	21.7%
Los Angeles Unified	548,338	80.2%	8.5%	0.1%	3.5%	7.3%	21.3%	1.8%	0.7%	1.4%	74.5%	0.1%	0.2%	1.0%	81.4%	13.6%	1.7%	10.2%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

ii. Special Education

New Los Angeles Charter 2021-2022 Enrollment by Disability																		
School	OCT 2021 Enroll #	SpEd Enroll #	SpEd Enroll %	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	# OHI*	# OI	# SLD*	# SLI*	# TBI	# VI
New Los Angeles Charter	320	60	18.8%	88.3%	11.7%	5	0	0	0	0	2	0	10	0	40	3	0	0
Statewide	5,892,240	745,513	12.7%	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Los Angeles Unified	548,338	74,435	13.6%	69.2%	30.8%	14,986	4	240	1,278	1	1,052	3,564	10,139	1,429	29,207	12,183	69	267

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and CALPADS County Authorizing LEA Report 1.1 Enrollment by Primary Status.

According to 2021 CALPADS Fall 1 Certified Student Profile List Report, New Los Angeles Charter has an 18.8% Special Education enrollment, which is higher than the state's percentage of 12.7%, and higher than the District's percentage of 13.6%. The CSD has conferred with staff in the Division of Special Education, and no concerns have been noted at this time.

iii. Additional Information

Regarding the Board benchmark for the charter school specific to reclassification of English Learners to Fluent English Proficient (FEP) status, New Los Angeles Charter met the reclassification benchmark in two of four years. For 2021-2022, at the time of writing this report, the state has not published reclassification rates.

Students Redesignated FEP			
School Year	New Los Angeles Charter	Los Angeles Unified	Met the Benchmark
2017-2018	26.7%	20.1%	MET
2018-2019	29.8%	22.8%	MET
2019-2020	6.5%	15.8%	NOT MET
2020-2021	0.0%	6.4%	NOT MET

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesreclass.asp>

Regarding the Board benchmark for the charter school specific to CALPADS reporting, New Los Angeles Charter has consistently met the benchmark on an annual basis for “providing a plan to the CSD of the school’s system for accurate and timely reporting of reclassification in CALPADS in alignment with CALPADS submission windows each year of the charter term.”

For additional information and context, should the City Language Immersion Charter and the New Los Angeles Charter material revision requests be approved by the LAUSD Board of Education, New Los Angeles Charter School has shared its intent to include additional management-level positions in its central office to support New Los Angeles Charter, New Los Angeles Charter Elementary, and City Language Immersion Charter, as well as move New Los Angeles Charter Elementary to a private site within its community.

d. Fiscal Operations

New Los Angeles Charter has earned the ratings of *Proficient* and *Accomplished* in the category of Fiscal Operations on its annual oversight evaluation reports for the last two years and has no unresolved fiscal issues pending.

During the 2021-2022 oversight visit, the CSD noted that the school’s internal controls and processes were generally in place and implemented in practice.

	2020-2021	2021-2022
Annual Oversight Evaluation Report Rating in Category of Fiscal Operations	3 Proficient	4 Accomplished

*Note: The annual oversight rating represents the Charter Schools Division staff evaluation of the school’s performance as outlined in the Annual Performance-Based Oversight Visit Report on or about the date of the annual oversight visit.

3. ***Fiscal Management and Performance***

a. **Fiscal Condition**

New Los Angeles Charter's fiscal condition is positive and has been upward trending since the 2018-2019 fiscal year. According to the 2020-2021 independent audit report, the school had positive net assets of \$2,722,932 and net income of \$620,265. The school's 2021-2022 Unaudited Actuals and its 2022-2023 First Interim project positive net assets and net income.

	2018-2019 (Audited Actuals)	2019-2020 (Audited Actuals)	2020-2021 (Audited Actuals)	2021-2022 (Unaudited Actuals)	2022-2023 (First Interim)
Net Assets	\$1,838,315	\$2,102,667	\$2,722,932	\$2,826,335	\$3,563,070
Net Income/Loss	(\$570,267)*	\$264,352	\$620,265	\$103,403	\$514,933
Transfers In/Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$221,802**

* Per the charter operator, the reported net loss of (\$570,267), as reflected in the school's 2018-2019 independent audit report, was primarily due to a one-time cost, resulted from the write-off of the loan receivable, pertaining to the school's refinancing of the New Market Tax Credit loans through 5301 Washington LLC (a related party), in exchange for future lease reductions.

**Per New Los Angeles Charter, the \$221,802 in 2022-2023 First Interim Prior Year Adjustments is primarily due to the hold harmless fund calculation at year-end reported in the 2021-2022 Unaudited Actual Report and the updated guidance on how to account for these funds.

b. **2020-2021 Independent Audit Report**

Audit Opinion: Unmodified/Unqualified

Material Weaknesses: None Reported

Deficiencies/Findings: None Reported

Lack of a Going Concern: None Reported

c. **Other Significant Fiscal Information**

According to New Los Angeles Charter School's independent audit report for the fiscal year ended June 30, 2021, New Los Angeles Charter School, its related entities, and its charter schools reported positive net assets of \$3,998,053 and net income of \$1,069,825. New Los Angeles Charter School, without its related entities and its charter schools, reported positive net assets of \$67,250 and net income of \$0.

According to New Los Angeles Charter School, there are no management fees charged to either New Los Angeles Charter or to the other charter school that it operates. Instead, each school pays a portion of the actual expenses for administrative support, including the salaries of the New Los Angeles Charter School Executive Director, its Head of Schools, its Director of Operations, and its Director of Special Education. These costs are allocated on a pro-rated basis, based on the enrollment at each of New Los Angeles Charter School's schools.

- B. Does the Petition Contain a Declaration of Whether or Not the Charter School Shall Be Deemed the Exclusive Public Employer of the Employees of the Charter School Community?**
Yes, the petition contains the required declaration.

New Los Angeles Charter

Academic Performance - English Language Arts

This report shows the performance levels for a single state indicator, English Language Arts, for all student groups. It shows the current year, Status level. Status levels range from Very High, High, Medium, Low, and Very Low for all state measures based on the 2021-22 school year data. A single (*) and a single dash (-) shows that the student group has fewer than 11 students, for that reason the Status and Status level are not reported for privacy reasons. For student groups with 11-29 students, the Status is reported but the Status level is not reported. A double dash (--) means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator										
RG	BD	Location Code	School	Student Group	Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison
W	1	8015	New Los Angeles Charter	All Students	310	-32.6	Low	-12.2	Low	Lower
				American Indian or Alaska Native	*	-	No Performance Level	-49.3	Low	--
				Asian	*	-	No Performance Level	63.0	Very High	--
				Black or African American	23	-23.7	No Performance Level	-57.7	Low	--
				English Learner	106	-81.6	Very Low	-61.2	Low	Lower
				Filipino	0	--	--	42.9	High	--
				Foster Youth	*	-	No Performance Level	-85.6	Very Low	--
				Homeless	*	-	No Performance Level	-62.9	Low	--
				Latino	272	-34.9	Low	-38.6	Low	Higher
				Native Hawaiian or Pacific Islander	*	-	No Performance Level	-29.1	Low	--
				Socioeconomically Disadvantaged	286	-34.6	Low	-41.4	Low	Higher
				Students with Disabilities	58	-103.6	Very Low	-97.3	Very Low	Lower
				Two or More Races	*	-	No Performance Level	25.1	High	--
				White	*	-	No Performance Level	21.9	High	--

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, beginning with the 2022 Dashboard, California will assign the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

English Language Arts Indicator Participation Rate By Student Group														
	All Students	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Hawaiian or Pacific Island	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	99%	100%	100%	100%	100%		100%	100%	99%	100%	99%	98%	100%	100%
Participation Rate Met 2022 *	Yes	Yes	Yes	Yes	Yes		Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

New Los Angeles Charter

Academic Performance - Math

This report shows the performance levels for a single state indicator, Mathematics, for all student groups. It shows the current year, Status level. Status levels range from Very High, High, Medium, Low, and Very Low for all state measures based on the 2021-22 school year data. A single (*) and a single dash (-) shows that the student group has fewer than 11 students, for that reason the Status and Status level are not reported for privacy reasons. For student groups with 11-29 students, the Status is reported but the Status level is not reported. A double dash (--) means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator										
RG	BD	Location Code	School	Student Group	Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison
W	1	8015	New Los Angeles Charter	All Students	311	-93.1	Low	-51.7	Low	Lower
				American Indian or Alaska Native	*	-	No Performance Level	-90.4	Low	--
				Asian	*	-	No Performance Level	48.4	Very High	--
				Black or African American	23	-76.3	No Performance Level	-106.9	Very Low	--
				English Learner	106	-142.4	Very Low	-92.0	Low	Lower
				Filipino	0	--	--	2.7	High	--
				Foster Youth	*	-	No Performance Level	-126.3	Very Low	--
				Homeless	*	-	No Performance Level	-101.8	Very Low	--
				Latino	273	-95.2	Very Low	-83.4	Low	Lower
				Native Hawaiian or Pacific Islander	*	-	No Performance Level	-71.3	Low	--
				Socioeconomically Disadvantaged	287	-93.4	Low	-84.0	Low	Lower
				Students with Disabilities	58	-164.1	Very Low	-130.8	Very Low	Lower
				Two or More Races	*	-	No Performance Level	-9.9	Medium	--
				White	*	-	No Performance Level	-13.4	Medium	--

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, beginning with the 2022 Dashboard, California will assign the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

Mathematics Indicator Participation Rate By Student Group														
	All Students	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Hawaiian or Pacific Islander	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	100%	100%	100%	100%	100%		100%	100%	100%	100%	100%	98%	100%	100%
Participation Rate Met 2022 *	Yes	Yes	Yes	Yes	Yes		Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

Data Sources: California School Dashboard Research data files 2022

New Los Angeles Charter

English Learner Progress Indicator (ELPI)

This report shows the percentage of current EL students making progress towards English language proficiency or maintaining the highest level. ELs take the ELPAC annually to measure their progress towards English language proficiency. The ELPAC has four performance levels. The four ELPAC performance levels are divided into six ELPI levels to determine whether ELs made progress toward English language proficiency. Due to the restrictions imposed by Assembly Bill 130, California is required to only report current year data (or Status) for the 2022 Dashboard. Results will fall into one of five Status levels, ranging from "Very High" to "Very Low." An asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students, for that reason the Status and Status level are not reported for privacy reasons. For student groups with 11-29 students, the Status is reported but the Status level is not reported. A double dash (--) means that data is not currently available.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

English Learner Progress Indicator - CA School Dashboard Indicator										
RG	BD	Location Code	School	Student Group	Number of English Learner Students	School 2022 Percentage of English Learners making progress towards English proficiency	School 2022 Status Level	State 2022 Percentage of English Learners making progress towards English proficiency	State 2022 Status Level	School to State ELPI Comparison
W	1	8015	New Los Angeles Charter	English Learner	79	50.6%	Medium	50.3%	Medium	Higher

Note: LEAs and schools that did not test at least 95 percent of their English learner population on the English Language Proficiency Assessments for California (ELPAC) are assigned a "Low" Status, unless they have a "Very Low" Status. Number of English Learners: '0 to 10'=Fewer than 11 EL students have an overall PL on ELPAC SA in both prior and current years (Status rate and level are suppressed) '11 to 29'=Number of EL students with overall PL on ELPAC SA in both prior and current years is 11 thru 29 (Status rate and level are reported but are not used for accountability) '30 and Up'=At least 30 EL students have an overall PL on ELPAC SA in both prior and current years (status rate and level are reported and will be used for accountability)

	ELPAC Participation
School tested less than 95% of EL Students	No
Note: Schools that did not test at least 95 % of their English learner population on the ELPAC are assigned a "Low" Status, unless they have a "Very Low" Status.	

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

2022 Student English Language Acquisition Results		
The percentage of current EL students who progressed at least one ELPI level, maintained ELPI level 4, maintained lower ELPI levels (i.e, levels 1, 2L, 2H, 3L, or 3H), or decreased at least one ELPI Level.		
School		
New Los Angeles Charter		State
ELs Who Progressed at Least One ELPI Level	44.3%	47.5%
ELs Who Maintained ELPI Level 4	6.3%	2.8%
ELs Who Maintained ELPI Level 1, 2L, 2H, 3L, 3H	29.1%	31.4%
ELs Who Decreased at Least One ELPI Level	20.3%	18.3%

Data Sources: California School Dashboard Research data files 2022

New Los Angeles Charter

Chronic Absenteeism

This report displays the percentage of students in Kindergarten through grade 8 who are absent 10 percent or more of the instructional days they were enrolled. Due to the restrictions imposed by Assembly Bill 130, California is required to only report current year data (or Status) for the 2022 Dashboard. Results will fall into one of five Status levels, ranging from "Very High" to "Very Low." Note: The Status levels are reversed for the Chronic Absenteeism Indicator in comparison to other state measures, and the goal is to have a low rate of student absence. An asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students, for that reason the Status and Status level are not reported for privacy reasons. For student groups with 11-29 students, the Status is reported but the Status level is not reported. A double dash (--) means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator										
RG	BD	Location Code	School	Student Group	Number of students enrolled who meet criteria	School 2022 Chronic Absenteeism Percentage	School 2022 Status Level	State 2022 Chronic Absenteeism Percentage	State 2022 Status Level	School to State Chronic Absenteeism Percentage Comparison
W	1	8015	New Los Angeles Charter	All Students	326	42.3%	Very High	30.0%	Very High	Higher
				American Indian or Alaska Native	*	--	No Performance Level	42.9%	Very High	--
				Asian	*	--	No Performance Level	11.5%	High	--
				Black or African American	23	65.2%	No Performance Level	42.9%	Very High	--
				English Learner	86	40.7%	Very High	33.6%	Very High	Higher
				Filipino	0	--	--	16.2%	High	--
				Foster Youth	*	--	No Performance Level	42.1%	Very High	--
				Homeless	*	--	No Performance Level	45.1%	Very High	--
				Latino	285	40.0%	Very High	35.8%	Very High	Higher
				Native Hawaiian or Pacific Islander	*	--	No Performance Level	43.9%	Very High	--
				Socioeconomically Disadvantaged	301	41.9%	Very High	37.4%	Very High	Higher
				Students with Disabilities	61	54.1%	Very High	39.6%	Very High	Higher
				Two or More Races	*	--	No Performance Level	25.1%	Very High	--
				White	*	--	No Performance Level	21.9%	Very High	--

Data Sources: California School Dashboard Research data files 2022

New Los Angeles Charter

Suspension Rate Indicator

Suspension Rate: The percentage of students in kindergarten through grade 12 who have been suspended at least once in a given school year. Students who are suspended multiple times are only counted once. Due to the restrictions imposed by Assembly Bill 130, California is required to report current year data (or Status) only for the 2022 Dashboard. Results will fall into one of five Status levels, ranging from "Very High" to "Very Low." Note: The Status levels are reversed for the Suspension Rate Indicator in comparison to other state measures, and the goal is to have a low rate of student suspension. An asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students, for that reason the Status and Status level are not reported for privacy reasons. For student groups with 11-29 students, the Status is reported but the Status level is not reported. A double dash (--) means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator										
RG	BD	Location Code	School	Student Group	Number of Students	School 2022 Percentage of Students suspended at least once	School 2022 Status Level	State 2022 Percentage of Students suspended at least once	State 2022 Status Level	School to State Suspension Rate Percentage Comparison
W	1	8015	New Los Angeles Charter	All Students	331	1.8%	Low	3.1%	Medium	Lower
				American Indian or Alaska Native	*	--	No Performance Level	6.4%	High	--
				Asian	*	--	No Performance Level	0.9%	Very Low	--
				Black or African American	23	4.3%	No Performance Level	7.9%	High	--
				English Learner	87	3.4%	Medium	3.2%	Medium	Higher
				Filipino	0	--	--	1.2%	Low	--
				Foster Youth	*	--	No Performance Level	12.4%	Very High	--
				Homeless	*	--	No Performance Level	5.5%	High	--
				Latino	290	1.7%	Low	3.3%	Medium	Lower
				Native Hawaiian or Pacific Islander	*	--	No Performance Level	4.5%	Medium	--
				Socioeconomically Disadvantaged	305	2.0%	Low	4.0%	Medium	Lower
				Students with Disabilities	61	3.3%	Medium	5.4%	High	Lower
				Two or More Races	*	--	No Performance Level	2.9%	Medium	--
				White	*	--	No Performance Level	2.6%	Medium	--

Data Sources: California School Dashboard Research data files 2022

New Los Angeles Charter

Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The California Department of Education collects some data on GATE programs through the California Longitudinal Pupil Achievement Data System (CALPADS); however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE. Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2021-2022 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
W	1	8015	New Los Angeles Charter	320	91.3%	0.0%	0.6%	1.3%	7.2%	25.9%	0.0%	0.3%	0.3%	86.6%	0.0%	0.3%	2.2%	92.2%	18.8%	1.6%	0.3%
Statewide				5,892,240	57.8%	N/A	0.5%	9.5%	5.1%	19.1%	2.3%	0.5%	2.9%	55.9%	0.7%	0.4%	1.0%	59.6%	12.7%	4.3%	21.7%
Los Angeles Unified				548,338	80.2%	8.5%	0.1%	3.5%	7.3%	21.3%	1.8%	0.7%	1.4%	74.5%	0.1%	0.2%	1.0%	81.4%	13.6%	1.7%	9.7%

2020-2021 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
W	1	8015	New Los Angeles Charter	321	91.0%	0.0%	0.6%	0.9%	5.3%	23.4%	0.0%	0.3%	0.3%	91.6%	0.0%	0.3%	0.0%	92.2%	15.9%	0.9%	0.3%
Statewide				6,002,523	58.9%	N/A	0.5%	9.5%	5.2%	17.7%	2.4%	0.4%	0.6%	55.3%	0.8%	0.4%	0.9%	60.3%	12.6%	4.1%	21.7%
Los Angeles Unified				574,996	81.3%	9.7%	0.2%	3.6%	7.6%	18.8%	1.9%	0.7%	1.2%	74.2%	0.2%	0.2%	0.5%	81.6%	13.4%	1.6%	10.2%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/filesenr.asp>

New Los Angeles Charter

RECLASSIFICATION RATES

This reports shows a two year comparison of the number of English Learners (ELs) on Census Day, the number of students reclassified since the prior Census Day, and the reclassification rate for each specified year. The reclassification rate, displayed in percentage, is calculated by dividing the number reclassified by the number of prior year ELs.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	Year	Students Redesignated FEP	School	State	School to State RFEP Comparison
W	1	8015	New Los Angeles Charter	2019-2020	2018-2019 Number of English Language Learners	46	1,195,988	Lower
					2019-2020 Number of Students Reclassified	3	164,653	
					2019-2020 Reclassification Rate	6.5%	13.8%	
				2020-2021	2019-2020 Number of English Language Learners	53	1,148,024	Lower
					2020-2021 Number of Students Reclassified	0	79,667	
					2020-2021 Reclassification Rate	0.0%	6.9%	

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesreclass.asp>

New Los Angeles Charter

Long-Term English Learners (LTEL) and "At-Risk"

Note: The "EL Total" column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the "English Learners" heading. The "Total (Ever-EL)" column displays the summed total of the data in the "RFEP" column plus the data in the four columns under the "English Learners" heading OR the data in the "EL Total" column, but not both. The percent values displayed in this report are calculated as a percent of the "Total (Ever-EL)" which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	English Learners	2020-2021				2021-2022			
					School		State		School		State	
					Enrollment	Percent	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent
W	1	8015	New Los Angeles Charter	LTEL 6+ Years	63	29.4 %	361,482	17.1 %	75	38.3 %	379,290	18.1 %
				At-Risk 4-5 Years	8	3.7 %	214,740	10.1 %	4	2.0 %	211,055	10.1 %
				EL 0-3 Years	4	1.9 %	463,337	21.9 %	4	2.0 %	497,471	23.8 %
				EL 4+ Years Not At-Risk or LTEL	0	0.0 %	22,731	1.1 %	0	0.0 %	39,832	1.9 %
				EL total	75	35.0 %	1,062,290	50.2 %	83	42.3 %	1,127,648	53.9 %
				RFEP	139	65.0 %	1,053,625	49.8 %	113	57.7 %	963,056	46.1 %
				Total (Ever)	214	100.0 %	2,115,915	100.0 %	196	100.0 %	2,090,704	100.0 %

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesltel.asp>

**New Los Angeles Charter
Students with Disabilities Report**

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by LEAs (Local Education Agencies). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. Note: Students with disabilities counts and percentages in this report may be higher or lower for some schools when comparing this report counts with 2021-22 Enrollment by Student Group counts posted in DataQuest by the CDE due to the accuracy of all data associated with the applicable CALPADS submission. CALPADS certification is a two-step process with Level-2 certification reserved for the district superintendents, charter school administrators, or their designees. High incidence eligibilities are indicated by an asterisk (*). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE - Data Reporting Office at <http://www.cde.ca.gov/ds/ds/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/sc/cml/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2021-2022 Special Education Enrollment						
RG	BD	Loc Code	School	OCT 2021 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
W	1	8015	New Los Angeles Charter	320	60	18.8%
Statewide				###,###	745,513	12.7%
Los Angeles Unified				548,338	74,435	13.6%

2020-2021 Special Education Enrollment						
RG	BD	Loc Code	School	OCT 2020 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
W	1	8015	New Los Angeles Charter	321	51	15.9%
Statewide				###,###	749,295	12.5%
Los Angeles Unified				574,996	79,753	13.9%

2021-2022 Special Education Enrollment																		
RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	# OHI *	# OI	# SLD *	# SLI *	# TBI	# VI
W	1	8015	New Los Angeles Charter	88.3%	11.7%	5	0	0	0	0	2	0	10	0	40	3	0	0
Los Angeles Unified				69.2%	30.8%	14,986	4	240	1,278	1	1,052	3,564	10,139	1,429	29,207	12,183	69	267
2020-2021 Special Education Enrollment																		
RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	# OHI *	# OI	# SLD *	# SLI *	# TBI	# VI
W	1	8015	New Los Angeles Charter	84.3%	15.7%	4	0	1	1	0	2	0	12	0	29	2	0	0
Los Angeles Unified				69.5%	30.5%	15,545	32	444	1,268	157	1,239	3,595	10,830	1,681	31,987	12,593	71	311

Key			
AUT	Autism	OHI	Other Health Impairment
DB	Deaf-Blindness	OI	Orthopedic Impairment
DEAF	Deafness	SLD	Specific Learning Disability
ED	Emotional Disturbance	SLI	Speech or Language Impairment
EMD	Established Medical Disability	TBI	Traumatic Brain Injury
HOH	Hard of Hearing	VI	Visual Impairment
ID	Intellectual Disability		

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ds/filesenr.asp> and CALPADS County Authorizing LEA Report 1.1 Enrollment by Primary Status.



LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
DESEGREGATION IMPACT STATEMENT (DIS)
NEW LOS ANGELES CHARTER
BOARD OF EDUCATION REPORT 194-22/23
March 21, 2023

I. Category of Proposed Action:

The proposed action would amend the charter for New Los Angeles Charter (“Charter School”), located in Board District 1 and Region West, to add admissions preferences and update its organizational structure.

II. Summary Description of Current District Practice:

Charter schools are schools of choice by legislation and are open to any student in the State of California. Charter schools are granted renewal for single charter status for a minimum period of two years to a maximum of seven (7) years, depending on the state’s classification of High, Middle or Low for a charter school’s performance pursuant to applicable law. Low performing charter schools may be renewed for a period of two years, Middle performing charter schools for five years, and High performing charter schools may receive a term of five, six or seven years. It should be noted, however, that although State legislation allows students to attend a charter school from any area in the state, the Los Angeles Unified School District (LAUSD) is under Court Order, Crawford v. LAUSD, which applies to all schools within or chartered through the LAUSD. Any modifications to the Court-Ordered Integration Program must first be approved by Student Integration Services.

III. Proposed Change:

The approval of this request for material revision would amend the charter to add admissions preferences and update its organizational structure.

IV. Effects of This Proposal:

The Los Angeles Unified School District (LAUSD) does not guarantee availability of Court-ordered Integration funding. The charter school will be responsible for maintaining the Court Order and providing information requested by the LAUSD as set forth in the Charter petition. Modifications or school decisions cannot negatively impact or cause additional costs to the Court-ordered Integration budget.

V. Analyze the Impact of This Proposal on Integration, Desegregation, Re-segregation and/or Segregation:

If the Charter goals are met, there should be positive results on the five (5) Harms of Racial Isolation which are low academic achievement, low self-esteem, lack of access to post-secondary opportunities, interracial hostility and intolerance, and overcrowded conditions. The Court-ordered Integration Program for participating students will operate under various Court Orders for schools within the Los Angeles Unified School District. Any modification of the Court-ordered Integration Program must first be approved by Student Integration Services.

VI. If proposed action affects negatively any desegregation program, list other option(s) identified:

If the District Court-ordered Integration Guidelines are followed, there will not be a negative effect on the District’s Court-ordered Integration Program.

PREPARED BY:

ERIK ELWARD, Ed.D.
 Specialist
 Charter Schools Division

APPROVED BY:

KEITH H. ABRAHAMS, III
 Executive Director
 Student Integration Services

ATTACHMENT D

**MATERIAL REVISION TO CHARTER OF
NEW LOS ANGELES CHARTER**

This Material Revision to the Charter of New Los Angeles Charter (“Material Revision”) is made between the Los Angeles Unified School District (“District” or “LAUSD”), a California public school district, and New Los Angeles Charter School (“NLACS”), a California non-profit corporation, operating a California public charter school known as New Los Angeles Charter (“Charter School” and/or “New LAC”). District and NLACS are also referred to individually as “Party,” and collectively as “Parties.”

This Material Revision is to be read in conjunction with and shall expressly revise the charter of New LAC which was originally authorized by the LAUSD Board of Education (“Board of Education”) on **April 22, 2008** and last renewed on October 3, 2017 for a five-year term from 2018 to 2023 (“Charter”). However, Assembly Bill 130 extended the terms of all charter schools whose terms expire on or between January 1, 2022, and June 30, 2025, inclusive, by two years. Thus, by operation of law, the charter term for Charter School expires on June 30, 2025.

The effective date of this Material Revision is the date of approval by the Board of Education and shall be implemented in the 2023-2024 academic school year. This Material Revision is based upon the following factual recitals:

RECITALS

A. **WHEREAS**, the approval of charter schools is governed by the Charter Schools Act of 1992, as subsequently amended, Education Code sections 47600 et seq;

B. **WHEREAS**, as set forth in Education Code section 47607, material revisions of charters are governed by the standards and criteria described in Section 47605, and shall include, but not be limited to, a reasonably comprehensive description of any new requirement of charter schools enacted into law after the charter was originally granted or last renewed;

C. **WHEREAS**, a material revision includes, but is not necessarily limited to, any change that would significantly alter a charter school's mission, vision, educational philosophy, educational program, governance, or organizational structure;

D. **WHEREAS**, changes to the admission preferences and procedures constitute a material revision pursuant to California law and *LAUSD Policy and Procedures for Charter Schools* (“LAUSD Policy”);

E. **WHEREAS**, as memorialized in the Charter, the Charter School is approved by the Board of Education to serve students in grades 6-8, and to provide admission preferences to 4 (four) categories of students. (*See New LAC Charter, page 72*);

F. **WHEREAS**, the Charter School’s governing board convened a meeting on December 7, 2022 and adopted a resolution (“Resolution”) to materially revise the Charter, subject to Board of Education approval, to make changes to the Charter School’s admission preferences due to a proposed transfer of the governance and operations of City Language

Immersion Charter (“CLIC”) to NLACS. CLIC is a LAUSD-authorized charter school currently governed and operated by City Charter Schools (“CCS”). The Resolution is attached herewith as **Attachment A** and part of this Material Revision.;

G. **WHEREAS**, the Resolution states that: “in light of CCS’s planned cessation of governance and operation of its middle and elementary school charters, and [[NLACS]’] desire to support those students who attend CCS’s schools, the [NLACS] Board finds it in the best interest of [NLACS] and in furtherance of its educational and charitable purposes to revise its [New LAC Charter] to provide an additional admissions preference so that students from all elementary schools operated by NLACS will receive preference at [New LAC], and that due to the fact that the CLIC merger will not become effective until July 1, 2023, after the lottery for the 2023-24 school year is conducted, include a one-time admission preference for CCS students currently enrolled at CCS’s charter schools during the spring 2023 admissions cycle for the 2023-24 school year.”;

H. **WHEREAS**, representatives of both NLACS and CCS submitted a joint correspondence to the District in support of this Material Revision, dated December 9, 2022 (“December 2022 Correspondence”) and a separate material revision application submitted by CLIC.¹ The December 2022 Correspondence explained that:

“...the [CCS Board] has decided to shut down operations at the end of the 2022-23 school year. [CCS] plans to close our small middle school, [The City], and have the elementary school, [CLIC] merge with [NLACS] starting July 1, 2023. Both the [CCS Board] and the [NLACS Board] have approved this merger, as indicated in board resolutions, pending the approval of the LAUSD Board of Education. [NLACS] also desires to acquire the facilities utilized by CLIC through a purchase and sale agreement, to be addressed in a subsequent Material Revision.”

The December 2022 Correspondence is attached herewith as **Attachment B** and part of this Material Revision;

I. **WHEREAS**, on December 7, 2022, CCS and NLACS executed a document entitled “Non-Binding Term Sheet for City Charter School’s transfer of its CLIC charter school, ownership of facility at 4001 Venice Blvd., and lease rights to facility at 5753 Obama Blvd, to New Los Angeles Charter School” (“Term Sheet”), whereby CCS and NLACS contemplate, among other things, to proceed in good faith on an exclusive basis toward execution of a definitive transfer agreement, with the principal terms of the Term Sheet being memorialized in that transfer agreement. The Term Sheet is attached herewith as **Attachment C** and part of this Material Revision; and

J. **WHEREAS**, the Parties agree to materially revise the Charter to reflect the changes above, LAUSD Policy and applicable state and federal laws.

¹ Concurrent with the submission of this Material Revision, CLIC submitted a material revision application to the District seeking to have NLACS assume operations and governance of CLIC. If the Board of Education does not approve the material revision of CLIC and instead takes specific action to deny CLIC’s proposed material revision, Charter School’s proposed admission preferences as described in this Material Revision and presented in Charter School’s material revision application, shall become void and have no force and effect.

NOW, THEREFORE, in consideration of the following terms and conditions, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

MATERIAL REVISION

1. **Element 8 - Admission Policies and Procedures**: Provisions in Element 8 shall be revised to align with current NLACS admission policies and procedures, including the use of SchoolMint, consistent with Education Code section 47605(e) and to adopt the [last] November 24, 2020, LAUSD Board-authorized NLACS' charter school, New Los Angeles Elementary. In addition, Element 7 shall be revised as follows:

- The admission preferences listed on page 72 of the Charter, in subsection 2 of the section titled "Lottery Preferences and Procedures" shall be revised to include students from CCS' operated charter schools. Therefore, the admissions preferences currently on page 72 of the Charter shall be deleted in its entirety and replaced with the following preferences and provision:
 - a. "Students who reside in the boundaries of the District;
 - b. Siblings of students currently enrolled at the Charter School, or who culminated the year prior;
 - c. Students enrolled at New Los Angeles Charter Elementary or CLIC. During the Spring 2023 admissions process and lottery for New LAC for the 2023-24 school year ONLY, a **one-time** admission preference shall be granted to students currently enrolled at The City, in recognition of CCS's closure of The City.
 - d. Children of New LAC staff (no more than 10% of total enrollment).
 - e. All other students.

No other admissions exemptions or preferences will be assigned. The NLACS Board may review and revise this preference policy as necessary for the well-being of the school. Any such revision constitutes material revision that would be submitted to the District for approval."

2. **Budget**: All prior budgets and cash flow projections submitted for the Charter School shall be replaced by the Charter School's revised budget(s), financial and cash flow projections incorporated and attached herewith as **Attachment D** and incorporated by reference and part of this Material Revision.

3. **Updated District Required Language**: The Charter shall be revised to update and incorporate the Board of Education approved "Federal, State, and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions updated August 11, 2020", attached herewith as **Attachment E** and incorporated by reference as part of this Material Revision.

4. The Charter School warrants that it is operated by a non-profit corporation in good standing in the State of California.

5. All other provisions set forth in the Charter shall remain in effect and enforceable.

6. The Parties agree that should any of the provisions of this Material Revision be judicially determined to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

7. The Parties agree that the approval of this Material Revision shall be contingent upon all applicable legal, Charter and District requirements being met necessary to transfer the ownership, control, operations, governance and/or assets from CCS to NLACS including but not limited to, compliance with the California Corporations Code, the Charter Schools Act and the terms set forth in the applicable Articles of Incorporation, Bylaws and the transfer agreement or other contractual arrangements, as referenced in Recital H of this Material Revision.

8. The Parties agree to cooperate fully in the execution of any and all other documents and/or additional actions necessary and/or appropriate to give full force and effect to the terms, provisions, and intent of this Material Revision.

9. The individuals signing this Material Revision warrant that they are authorized to do so, and further, that they are authorized to make the promises in this Material Revision on behalf of the respective Parties.

IN WITNESS WHEREOF, the Parties hereto have caused this Material Revision to be duly executed and delivered in their respective names by their authorized representatives as of the date set forth below.

DATED: March __, 2023

NEW LOS ANGELES CHARTER SCHOOL

By: _____

Title: _____

Authorized Representative of New Los Angeles Charter School

DATED: March __, 2023

LOS ANGELES UNIFIED SCHOOL DISTRICT

By: _____

Title: _____

Authorized Representative of Los Angeles Unified School District

Attachments:

Attachments for perusal at the following link:

https://drive.google.com/drive/folders/1cCVvNI3AbczeMcREi8xpyWrd5A9JRZB?usp=share_link

- A. NLACS Resolution.
- B. December 2022 Correspondence.
- C. Term Sheet.
- D. Updated New LAC's Budget, Financial, and Cash Flow Projections.
- E. Federal, State, and District Required Language for Independent Charter School Petitions (New and Renewal) and Material Revisions (FSDRL) updated August 11, 2020.

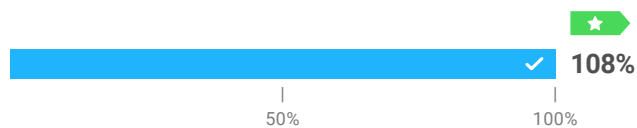
Diagnostic Growth

School
Subject
Academic Year
Comparison Diagnostic

New Los Angeles Middle School
Math
2021 - 2022
Final Diagnostic

Students Assessed/Total: 318/324

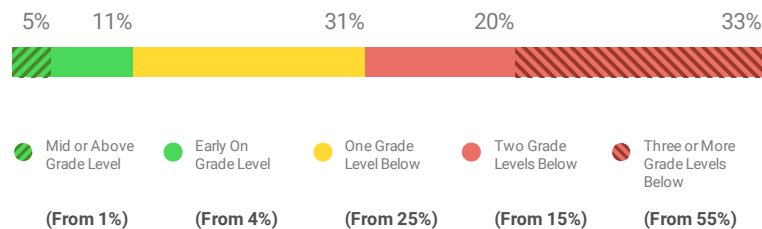
Progress to Annual Typical Growth (Median)



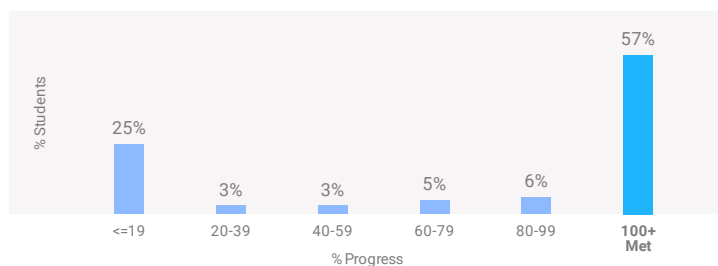
The median percent progress towards Typical Growth for this school is 108%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

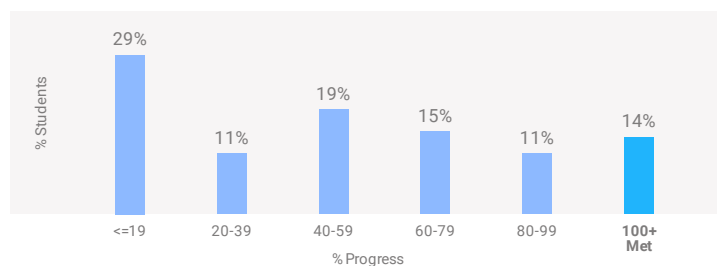
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

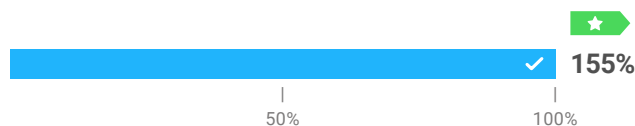
Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	107%	59%	50%	10%	65%	108/109
Grade 7	92%	47%	42%	16%	51%	108/108
Grade 8	132%	64%	52%	16%	60%	102/107

Diagnostic Growth

School New Los Angeles Middle School
Subject Reading
Academic Year 2021 - 2022
Comparison Diagnostic Final Diagnostic

Students Assessed/Total: **318/324**

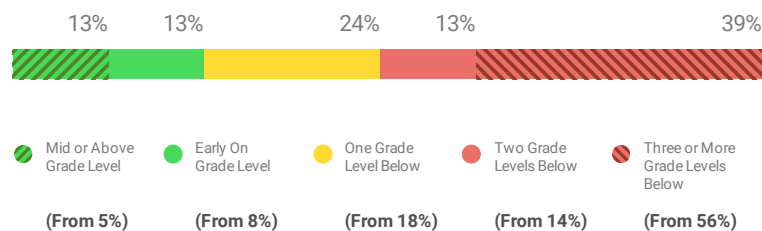
Progress to Annual Typical Growth (Median)



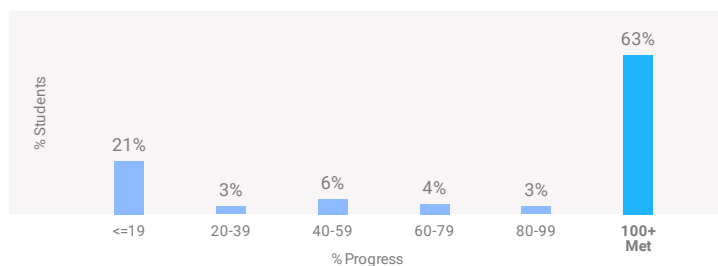
The median percent progress towards Typical Growth for this school is 155%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

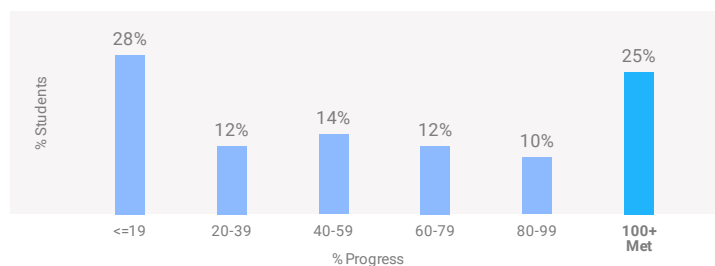
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	171%	67%	70%	32%	61%	108/109
Grade 7	174%	65%	59%	26%	58%	108/108
Grade 8	111%	56%	40%	17%	59%	102/107

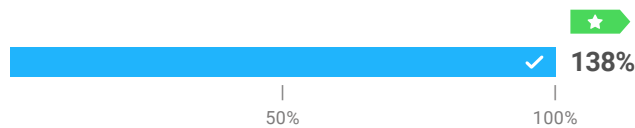
Diagnostic Growth

School
Subject
Academic Year
English Learner
Comparison Diagnostic

New Los Angeles Middle School
Reading
2021 - 2022
Yes - English Learner
Final Diagnostic

Students Assessed/Total: 86/87

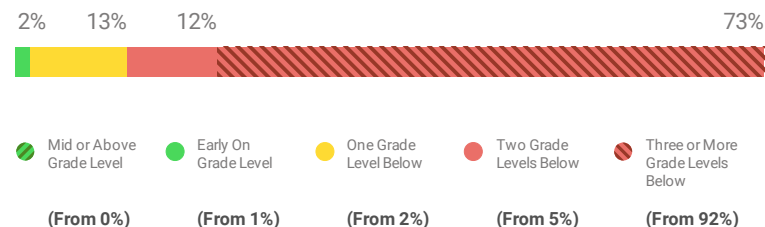
Progress to Annual Typical Growth (Median)



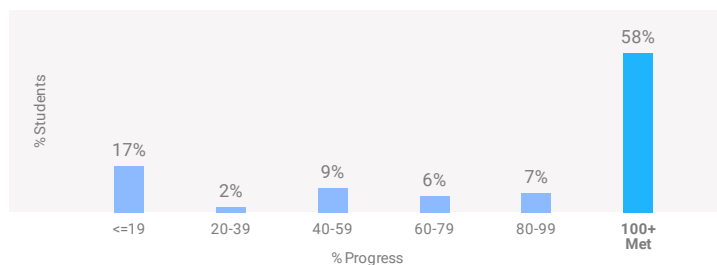
The median percent progress towards Typical Growth for this school is 138%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

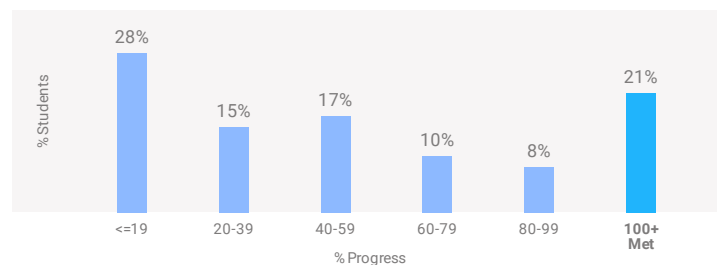
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	132%	53%	49%	30%	60%	30/31
Grade 7	159%	67%	54%	19%	56%	36/36
Grade 8	111%	50%	40%	10%	65%	20/20



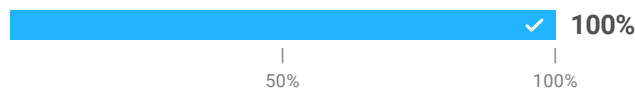
Diagnostic Growth

School
Subject
Academic Year
English Learner
Comparison Diagnostic

New Los Angeles Middle School
Math
2021 - 2022
Yes - English Learner
Final Diagnostic

Students Assessed/Total: **86/87**

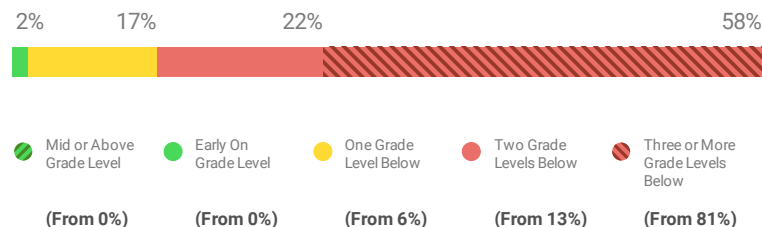
Progress to Annual Typical Growth (Median)



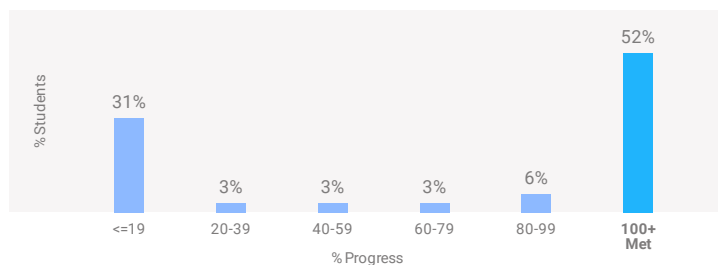
The median percent progress towards Typical Growth for this school is 100%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

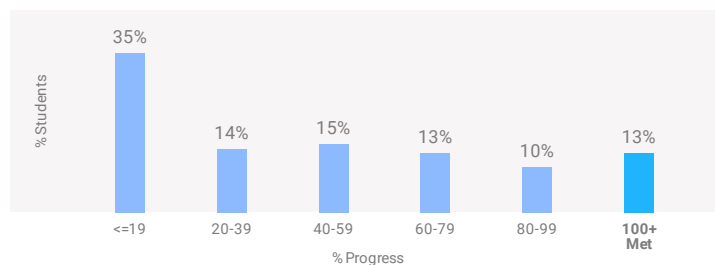
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	121%	63%	54%	7%	70%	30/31
Grade 7	39%	39%	15%	17%	39%	36/36
Grade 8	113%	60%	44%	15%	75%	20/20



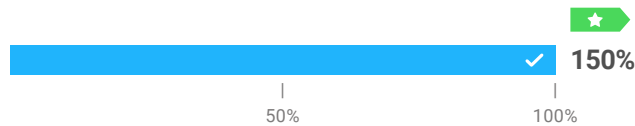
Diagnostic Growth

School
Subject
Academic Year
Hispanic or Latino
Comparison Diagnostic

New Los Angeles Middle School
Reading
2021 - 2022
Yes - Hispanic or Latino
Final Diagnostic

Students Assessed/Total: 272/276

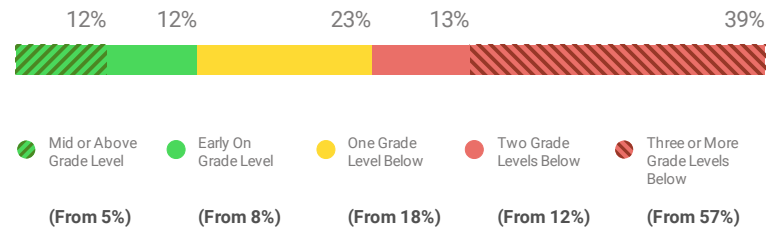
Progress to Annual Typical Growth (Median)



The median percent progress towards Typical Growth for this school is 150%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

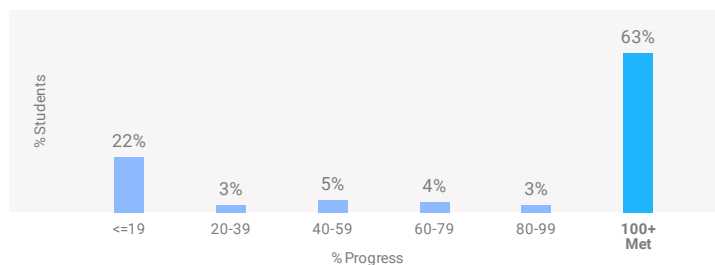
[Learn More About Growth](#)

Current Placement Distribution

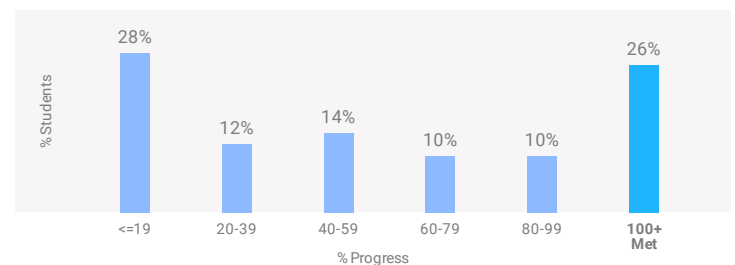


Mid or Above Grade Level (From 5%)
Early On Grade Level (From 8%)
One Grade Level Below (From 18%)
Two Grade Levels Below (From 12%)
Three or More Grade Levels Below (From 57%)

Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	164%	69%	71%	33%	62%	85/86
Grade 7	166%	64%	56%	28%	56%	94/94
Grade 8	111%	55%	40%	17%	57%	93/96



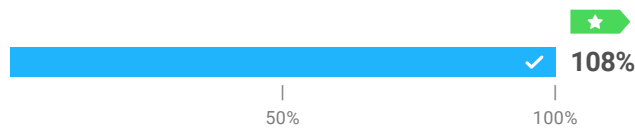
Diagnostic Growth

School
Subject
Academic Year
Hispanic or Latino
Comparison Diagnostic

New Los Angeles Middle School
Math
2021 - 2022
Yes - Hispanic or Latino
Final Diagnostic

Students Assessed/Total: 272/276

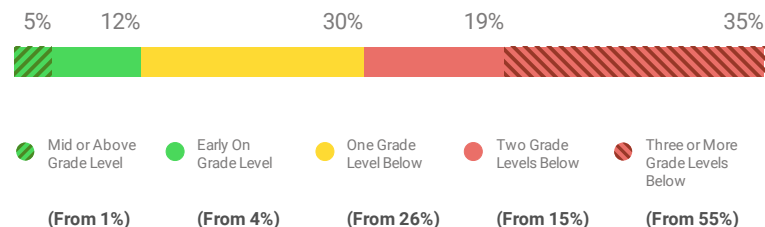
Progress to Annual Typical Growth (Median)



The median percent progress towards Typical Growth for this school is 108%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

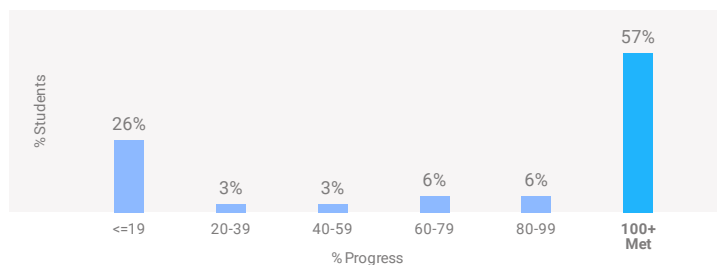
[Learn More About Growth](#)

Current Placement Distribution

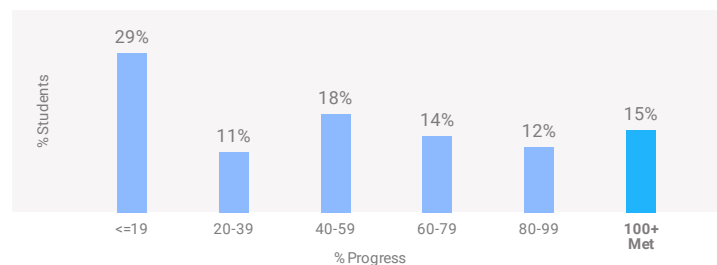


Mid or Above Grade Level (From 1%)
Early On Grade Level (From 4%)
One Grade Level Below (From 26%)
Two Grade Levels Below (From 15%)
Three or More Grade Levels Below (From 55%)

Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	113%	62%	51%	12%	67%	85/86
Grade 7	92%	48%	42%	16%	50%	94/94
Grade 8	125%	62%	48%	16%	58%	93/96



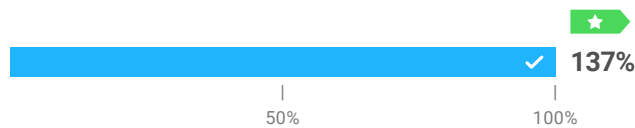
Diagnostic Growth

School
Subject
Academic Year
Special Education
Comparison Diagnostic

New Los Angeles Middle School
Reading
2021 - 2022
Yes - Special Education
Final Diagnostic

Students Assessed/Total: 53/56

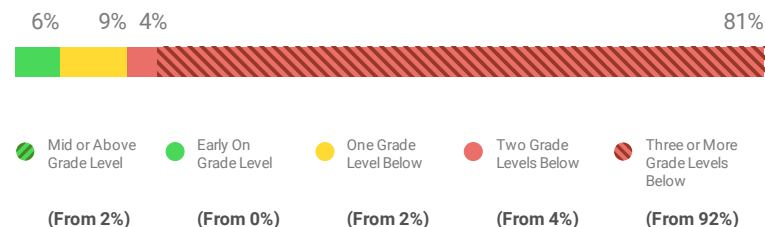
Progress to Annual Typical Growth (Median)



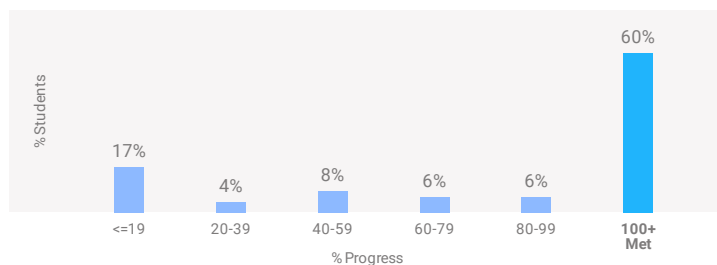
The median percent progress towards Typical Growth for this school is 137%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

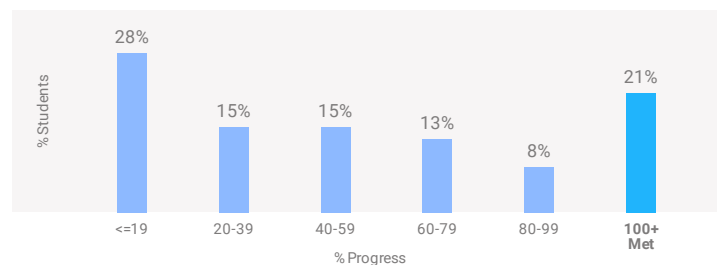
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	184%	68%	69%	32%	58%	19/20
Grade 7	188%	60%	64%	20%	53%	15/15
Grade 8	100%	53%	36%	11%	53%	19/21



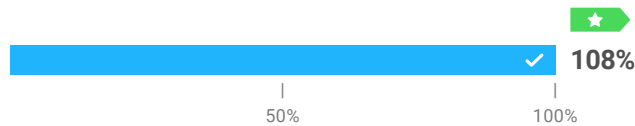
Diagnostic Growth

School
Subject
Academic Year
Special Education
Comparison Diagnostic

New Los Angeles Middle School
Math
2021 - 2022
Yes - Special Education
Final Diagnostic

Students Assessed/Total: 55/56

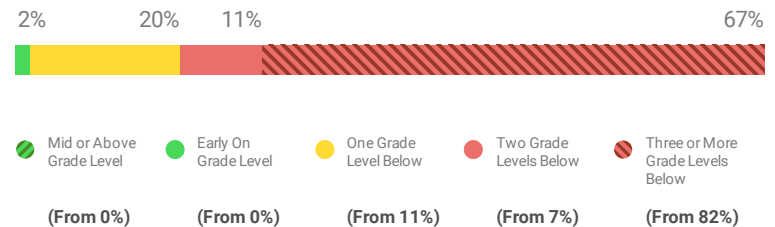
Progress to Annual Typical Growth (Median)



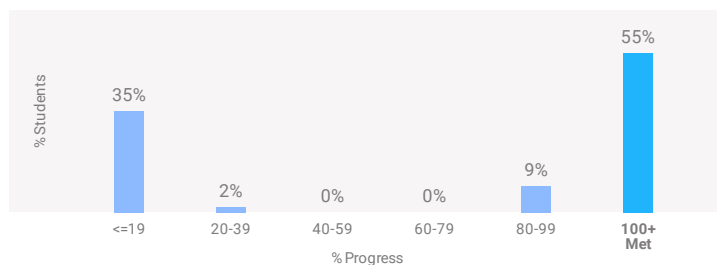
The median percent progress towards Typical Growth for this school is 108%. Typical Growth is the average annual growth for a student at their grade and baseline placement level.

[Learn More About Growth](#)

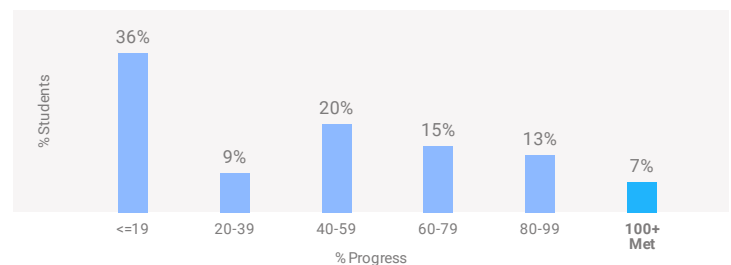
Current Placement Distribution



Distribution of Progress to Annual Typical Growth



Distribution of Progress to Annual Stretch Growth®



Choose to Show Results By

Grade

Showing 3 of 3

Grade	Annual Typical Growth		Annual Stretch Growth®		% Students with Improved Placement	Students Assessed/Total
	Progress (Median)	% Met	Progress (Median)	% Met		
Grade 6	133%	68%	57%	5%	74%	19/20
Grade 7	92%	47%	36%	7%	47%	15/15
Grade 8	83%	48%	32%	10%	48%	21/21



Public Notice of Bargaining Union Initial Proposals